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Securing the Future of Outdoor Dining

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During the pandemic, small business owners were on a roller coaster of uncertainty. Restaurants were especially challenged by the constantly changing regulations, and adapted to serve their customers in new ways.

From Los Angeles to Sacramento, restaurateurs throughout the state found innovative ways to ensure their doors stayed open. When their dining rooms were mandated to close, they extended onto our streets and sidewalks. They invested their time and money into building parklets and buying additional outdoor covering, all in an effort to keep serving customers.

Restaurants adapted to this additional space by adding additional kitchen and wait staff, but now cities like San Diego and Santa Monica are starting to place new restrictions and hefty fees on outdoor dining expansions–resulting in parklets shutting down and restaurants laying off staff.

These additional fees and restrictions to outdoor dining impact all restaurant owners, but the weight of this impact is disproportionately felt by Black-owned restaurants. That's why it is crucial for lawmakers to establish a consistent statewide standard of outdoor dining regulations. Bills like AB 1217, introduced by Assemblymember Jesse Gabriel, can help ensure long-term support for all restaurants.

Despite the ongoing uncertainties and economic hurdles faced by businesses on the road to recovery, outdoor dining options have become a lifeline for restaurants during these challenging times, particularly for Black-owned restaurants. Black-owned restaurants, which were among the hardest hit during the pandemic, faced unique and compounded challenges to survive. In fact, a survey from the Small Business Majority showed that only 3 in 10 Black-owned businesses received the amount requested through the Federal Paycheck Protection Program during the pandemic.

In light of this disparity, outdoor dining emerged and provided a more equitable and level playing field. Since then, Black-owned restaurants have embraced their expanded footprints and now rely heavily on the additional business that outdoor dining provides. In order to ensure their continued viability, now is the time to enact measures that protect the outdoor dining expansion and move us closer to a more permanent solution.

AB 1217 would mandate that local jurisdictions reduce the number of required parking spaces and instead allow a portion of that space to be used for outdoor dining. This legislation recognizes the valuable role of outdoor dining and seeks to ease restrictions to allow restaurant owners to expand their dining rooms and ultimately continue to grow their businesses.

Business owners invested significant amounts of money to adapt to the initial outdoor dining mandates during the COVID-19 era, and it's clear that diners and business-owners alike are enjoying our new access to outdoor dining. This new normal is not only good for bottom lines, it helps our cities offer a greater sense of community, ensuring that locals and tourists alike can take in the sights of our cities while supporting California businesses.

The positive impact of expanding outdoor dining opportunities for California's local restaurants as a more permanent solution cannot be overstated. Small businesses are the heartbeat of our communities, add to the culture of a neighborhood, and create jobs. The disproportionate toll that would be faced by Black-owned restaurants underscores the urgent need for legislative measures that support our small business owners.

We encourage legislators to vote yes on AB1217 and ensure all California restaurant owners can expand their businesses to fuel their continued recovery.

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